

24NWLC40958 24NWLC40958

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-06-29

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Case Number: 24NWLC40958 Hearing Date: June 29, 2026 Dept: Y

24NWLC40958: DISCOVER BANK vs RAUL N LOPEZ

Tentative Ruling:

The Court has read and considered the moving papers filed by Plaintiff Discover Bank ("Plaintiff"), the supporting declaration, and all relevant court records.

In its motion, Plaintiff requests to set aside and vacate the Default entered by the Clerk on March 25, 2025 and the Default Judgment entered by the Clerk on March 28, 2025. Plaintiff also requests to dismiss the action without prejudice. Plaintiff has presented evidence via declaration that Plaintiff received notification that there are grounds to set aside the judgment against Defendant Raul Lopez ("Defendant").

Pursuant to Code of Civil Procedure section 473(b), the Court may set aside any judgment that was obtained by mistake or surprise. Code of Civil Procedure section 187 also grants jurisdiction to the Court to take appropriate action in the interests of justice.

Based on the declaration submitted by Plaintiff, the Court GRANTS Plaintiff's Motion to Set Aside and Vacate Default and Default Judgment. Accordingly, the Judgment entered against Defendant on March 28, 2025 is vacated.

The Court further orders that the Complaint filed by Plaintiff and against Defendant is DISMISSED without prejudice.

Plaintiff to give notice.